

25TRCV03108 25TRCV03108

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV03108 Hearing Date: August 6, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – August 6, 2026

Calendar No.

PROCEEDINGS

Assurance

A. Tanyi v. Tina Ogan, et al.

25TRCV03108

1.

Adam L. Steltzer's

Demurrer to Complaint

TENTATIVE RULING

Adam L. Steltzer's Demurrer to Complaint is sustained
with 20 days leave to amend.

Background

Plaintiff filed the Complaint on September 10, 2025. Plaintiff alleges the following facts. Plaintiff was hired by Defendant Christy Ogani to provide services for decedent John Tomagal. Plaintiff provided services but was not paid. Plaintiff set forth the following causes of action: 1. Breach of Contract; 2. Wrongful Termination; 3. Unfair Deceptive Dealings and Business Practices/Loss of Wages and Profits.

Request
for Judicial Notice

Defendant's
request for judicial notice is granted pursuant to Evidence Code § 452(d) and (h).

Meet and Confer

Defendant filed a meet and confer declaration in
sufficient compliance with CCP §§ 430.41. (Decl., Adam L. Streltzer).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case
"with reasonable precision and with particularity sufficiently specific to

acquaint the defendant with the nature, source, and extent of his cause of action.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.)

“Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.”

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Code Civ. Proc., § 366.2 states:

“(a) If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.

(b) The limitations period provided in this section for commencement of an action shall not be tolled or extended for any reason except as provided in any of the following, where applicable:

(1) Sections 12, 12a, and 12b of this code.

(2) Part 4 (commencing with Section 9000) of Division 7 of the Probate Code (creditor claims in administration of estates of decedents).

(3) Part 8 (commencing with Section 19000) of Division 9 of the Probate Code (payment of claims, debts, and expenses from revocable trust of deceased settlor).

(4) Former Part 3 (commencing with Section 21300) of Division 11 of the Probate Code (no contest clauses), as that part read prior to its repeal by Chapter 174 of the Statutes of 2008.

(c) This section applies to actions brought on

liabilities of persons dying on or after January 1, 1993.”

Here, upon matters on the face of the pleadings, a bar based on the one-year statute of limitations applies to Plaintiff's claims. Plaintiff has specifically alleged facts to state that the causes of action accrued sometime between and no later than December 24, 2021 upon the death of decedent. (Complaint, ¶¶ 11-15). In fact, Plaintiff specifically alleges facts demonstrating her awareness of the claims in 2020. (Complaint, ¶ 24). The Complaint was filed on September 10, 2025. The Court further notes that Plaintiff failed to allege that she submitted a creditor claim in Probate against the decedent's estate. Prob. Code § 9351.

Plaintiff argues that Defendant has no standing to bring this demurrer. However, Defendant has standing as the administrator and personal representative of the Estate of the decedent.

Plaintiff attempts to invoke the delayed discovery rule. “In order to rely on the discovery rule for delayed accrual of a cause of action, [a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to show diligence; conclusory allegations will not withstand demurrer.” *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 (internal citations and quotations omitted). Here, however, Plaintiff has failed to allege facts to invoke the delayed discovery rule.

Plaintiff also argues that fraudulent concealment acts to toll the statute of limitations. “A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or

suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.

“Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.” *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157. Plaintiff must state facts which “show how, when, where, to whom, and by what means the representations were tendered.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645. Plaintiff fails to allege the requisite specific facts to allege fraudulent concealment. Plaintiff asserted some arguments in her opposition but no facts are set forth in the Complaint.

“[I]t is firmly established that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it. [...] [T]he doctrine of fraudulent concealment for tolling the statute of limitation does not come into play, whatever the lengths to which a defendant has gone to conceal the wrongs, if a plaintiff is on notice of a potential claim.” *MGA Entertainment, Inc. v. Mattel, Inc.* (2019) 41 Cal.App.5th 554, 561. Thus, even with this doctrine, factors such as reasonable diligence and notice must be considered.

Thus, the demurrer is sustained with 20 days leave to amend.

Defendant is ordered to give notice of this ruling.